

board of supervisors recommend other persons suitable in his opinion for said offices within thirty days after their first recommendation has been rejected, he shall fill the said offices, or either of them, by his own appointment in term or in vacation. No recommendation made by the board of supervisors shall be rejected by the judge, except for reasons entered of record.

Sec. 96. When district officers elected; term of office.—In each magisterial district there shall be chosen by the qualified voters thereof, at the general election to be held in May, in the year eighteen hundred and eighty-nine, and biennially thereafter, one supervisor, one constable, three justices, and one overseer of the poor, who shall hold their offices for the term of two years. 1874-5, p. 134, c. 153, § 4.

Sec. 97. Additional justices and constables provided for.—Whenever a county court shall be of opinion that the public service requires a greater number of justices or constables in any district than those specified in the constitution, and shall so enter of record and designate the number of such additional officers, notice thereof shall be published in such district, and at the next succeeding general election for district officers, such additional officers shall be elected in the mode prescribed for the election of district officers, and continue to be elected at each succeeding general election of district officers until otherwise ordered by the court. And it shall be lawful for the said court to appoint officers to serve until such additional officers are elected and qualified. Such officers whether elected or appointed shall qualify and give bond as prescribed for district officers. The said court may, in its discretion, revoke the order requiring such additional officers, such revocation to take effect at the expiration of the terms of such officers. 1875-6, p. 210, c. 172.

Sec. 98. When clerks of city courts elected; term of office; when clerk of corporation court; to be clerk of circuit court; when mayor, sergeant, commissioner, commonwealth's attorney, and treasurer elected; term of office.—There shall be chosen by the qualified voters of each city, at the general election held in May, eighteen hundred and eighty-eight, and every six years thereafter, a clerk of the corporation or hustings court, who shall also be clerk of the circuit court of such city; but in cities containing a population of thirty thousand or more, there shall be elected at the same time a separate clerk for such circuit court, and in the city of Richmond also a clerk of the chancery court, who shall hold their offices respectively for the term of six years; and at the general election held in May in the year eighteen hundred and eighty-eight, and every two years thereafter, a mayor, a city sergeant, a commissioner of the revenue, and a commonwealth's attorney, who shall also be the commonwealth's attorney of the circuit court of said city, who shall hold their offices, respectively, for the term of two years; and at the general election held in May, in the year eighteen hundred and eighty-eight, and every three years thereafter, a city treasurer, who shall hold his office for the term of three years. 1869-70, p. 80, c. 76, § 16. Id., p. 149, c. 110, § 1. Id., p. 80, § 17. Id., § 18.

Sec. 99. City charter to govern time of election.—Where the time for electing any of the officers mentioned in the preceding section is prescribed by the charter of a city, such officer shall be elected at the time so prescribed, although the same may be variant from that mentioned in said section.

or landing discontinued, after posting notice of the intended application on the first day of a term of the county court, at the front door of the courthouse of the county, and at two public places in the neighborhood. The court, at the next term after that at which notice may have been so published, shall appoint not less than three nor more than five viewers, to view such road or landing, and report, in writing, whether in their opinion, any, and if any, what inconvenience would result from discontinuing the same. Upon the said report, and other evidence, if any, the court may discontinue such road or landing; taking care, in every case of an established post road, not to discontinue the same until another has been substituted.

1878-9, p. 55,
c. 65.

Sec. 960. Erection of gates.—Application may be made to the court of a county to permit gates to be erected across any road therein; and a notice of such application shall be forthwith posted at the front door of the courthouse, and at two public places near where the gates are proposed to be erected. If it appears at the next term that the notice has been duly posted at least twenty days, the court may, upon evidence, if any, permit such erection. But the gates erected shall be discontinued whenever the court may so direct, after like notice of twenty days.

Id.

Sec. 961. Discontinuance of gates.—If it be suggested by any citizen of this state to the court of the county in which such gate is, that injury or inconvenience results therefrom, the court shall cause the owner of such gate to appear at the next term and show cause why the same should not be discontinued, and upon the return of such process "executed," shall determine whether there ought to be such discontinuance or not. If the court adjudge that the gate shall be removed, the surveyor of the road precinct shall remove the same at such time as the court may order; but such person shall have the right of appeal to the circuit court. Whenever a road is established with gates, and the gates are removed as ordered and damages are claimed by the party owning the same, the court shall appoint viewers to examine and report upon the nature and extent of the damage caused by the removal; and upon their report and other evidence, if any, the court may allow such damages as may appear to be proper, which shall be chargeable on the county.

1874-5, p. 180,
c. 181, § 16.

Sec. 962. Duty of owner or occupier of dam to maintain road or bridge.—Every owner or occupier of a dam shall, so far as a road passes over the same, keep such dam in good order, at least twelve feet wide at the top, and also keep in good order a bridge of like width over the pier-head, flood gates, or any waste cut through or around the dam; and shall erect and keep in good order a strong railing on both sides of such bridge or dam, unless such railing be dispensed with by the county court. If he fail to comply with this section, he shall be fined two dollars for every failure of twenty-four hours, but the fine shall not, in any case, exceed fifty dollars; and where a mill-dam is carried away or destroyed, the owner or occupier thereof shall not be thenceforth subject to such fine until one month after the mill shall have been put into operation.

1883-4, p. 459,
352, § 1.

Sec. 963. Road surveyors, their appointment and duties.—There shall be appointed by the board of supervisors in the several counties a road surveyor for every election district, who shall be a resident and voter thereof, and whose duty it shall be to superintend and direct the repairs, and in keeping in order, of all county roads and bridges within his election district, in such manner, and under such regulations and restrictions as may be prescribed by the board of supervisors of his county.